

STATE OF NEW YORK

4384--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 4, 2025

Introduced by M. of A. PAULIN -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing deadlines for finalizing and objecting to nominating petitions for small city school board elections

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivisions 1 and 2 of section 2608 of the education law,
2 subdivision 1 as amended by chapter 273 of the laws of 1987 and subdivi-
3 sion 2 as amended by chapter 502 of the laws of 1974, are amended to
4 read as follows:
5 1. Candidates for members of the board of education in a city school
6 district shall be nominated by petition directed to the board of educa-
7 tion and signed by at least one hundred persons qualified to vote at
8 school elections in such district. Such petition shall contain the names
9 and residences of the candidates for the vacancies in the board of
10 education to be filled at the annual election. Where a proposition has
11 been adopted by the voters of such district to require that each vacancy
12 on the board of education to be filled shall be considered a separate
13 specific office, a separate petition shall be required to nominate a
14 candidate to each separate office and such petition shall describe the
15 specific vacancy on the board of education for which the candidate is
16 nominated, which description shall include at least the length of the
17 term of office and the name of the last incumbent, if any. Such
18 petitions shall be filed in the office of the clerk of the board of
19 education between the hours of nine a.m. and five p.m., on or before the
20 [~~twentieth~~] thirtieth day preceding the day of the annual election. The
21 clerk shall refuse to accept petitions signed by an insufficient number

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 of qualified voters, or petitions which are not timely. Beginning on the
2 following day, and for a five-day period thereafter, qualified voters of
3 the district may object to the placement of one or more names on the
4 ballot, on the following bases: insufficient number of signatures;
5 signatories who are not qualified to vote in such election; insufficient
6 candidate information; or failing to file before the deadline. The board
7 shall then have five days to examine each objection and determine wheth-
8 er to remove the names of one or more candidates from the ballot. The
9 clerk of the board of education shall finalize the ballot on the twenti-
10 eth day preceding the day of the annual election, in accordance with
11 subdivision two of this section, after the board has examined and
12 decided on all objections. If a candidate for whom a nominating petition
13 for the office of member of a board of education has been duly filed
14 withdraws such petition, dies or becomes otherwise ineligible to hold
15 such office at a time which is later than fifteen days before the last
16 day for the filing of nominating petitions as provided in this subdivi-
17 sion, the time for filing nominating petitions for such office shall be
18 extended to five p.m. on the fifteenth day after the date on which the
19 candidate withdrew, died or otherwise became ineligible to hold such
20 office, provided that no such nominating petition may be filed after
21 five p.m. on the seventh day preceding the election.

22 2. The board of education shall cause to be printed official ballots
23 containing the names of all candidates as above provided, except that
24 the board may refuse to have the names of ineligible candidates placed
25 on such ballots. The names of the candidates shall be ~~arranged~~ listed
26 in the order as determined by the drawing by lot in accordance with the
27 provisions of paragraph b of subdivision two of section two thousand
28 thirty-two of this ~~law~~ title. Such drawing shall be conducted by the
29 clerk of the board of education and shall be held on the twentieth day
30 preceding the day of the annual election. Blank spaces shall be provided
31 so that voters may vote for candidates who have not been nominated for
32 the offices to be filled at such elections. The form of such ballots
33 shall conform substantially to the form of ballots used at general
34 elections as prescribed in the election law. Such ballots shall be
35 printed at the expense of the city school district.

36 § 2. Paragraph b of subdivision 2 of section 2032 of the education
37 law, as amended by chapter 502 of the laws of 1974, is amended to read
38 as follows:

39 b. The names of all candidates for each separate specific office shall
40 be grouped together and at the top of each group shall be placed a
41 description of the separate specific office for which such candidates
42 are nominated, which description shall include at least the length of
43 the term of office and the name of the last incumbent, if any, and in
44 addition a direction that only one vote may be cast in each separate
45 group. The names of the candidates for each separate specific office
46 shall be listed in the order as determined by a drawing by lot. ~~Such~~
47 Except for districts subject to the procedures in subdivision two of
48 section two thousand six hundred eight of this title, such drawing shall
49 be conducted by the clerk of the board of education and shall be held
50 the day after the last possible date for candidates to file a petition.
51 In the event that any candidate is not present in person or by a person
52 designated in a written proxy to accomplish the drawing, the district
53 clerk shall be authorized to act as proxy. In any district where a
54 proposition has been adopted pursuant to ~~paragraph~~ subdivision b of
55 section two thousand eighteen of this title, the names of all candidates
56 for vacancies upon the board of education shall be arranged according to

1 lot as prescribed in this section, and a direction shall be made that as
2 many candidates may be voted for as there are vacancies to be filled.
3 § 3. This act shall take effect on the first of July next succeeding
4 the date on which it shall have become a law.